

POPULATION REGISTRY LAW, 5725-1965 *

CHAPTER ONE : REGISTRY

Interpretation
and applicability.

1. (a) In this Law, "resident" means a person who is in Israel as an Israel national or under an *oleh's*¹⁾ visa or *oleh's* certificate or under a permit of permanent residence.

(b) Any other person who is in Israel, except a person who is therein under a permit of transitory residence or a visitor's permit of residence or under a foreign diplomatic passport, shall, for the purposes of this Law, be likewise regarded as a resident.

(c) The provisions of this Law conferring rights or imposing duties on, or relating to, a resident shall apply also to an Israel national who is not a resident.

Registry and
particulars of
registration.

2. (a) The following particulars relating to a resident, and any change therein, shall be entered in the Population Registry :

(1) Surname, first name and previous names;

(2) names of parents;

* Passed by the Knesset on the 22nd Tammuz, 5725 (22nd July, 1965) and published in *Sefer Ha-Chukkim* No. 466 of the 3rd Av, 5725 (1st August, 1965), p. 270; the Bill and an Explanatory Note were published in *Hatza'ot Chok* No. 622 of 5724, p. 266.

¹⁾ *Oleh* -- an immigrant by virtue of the Law of Return, 5710-1950 (Tr.).

- (3) date and place of birth;
- (4) sex;
- (5) ethnic group;
- (6) religion;
- (7) personal status (single, married, divorced or widowed);
- (8) name of spouse;
- (9) names, dates of birth, and sex, of children;
- (10) past and present nationality or nationalities;
- (11) address;
- (12) date of entry into Israel;
- (13) date of becoming a resident, within the meaning of sub-section 1 (a).

(b) When a resident is first registered, an "identity number" shall be fixed for his registration.

3. The entry in the Registry and any copy thereof or extract therefrom, and any certificate issued under this Law, shall be *prima facie* evidence of the correctness of the particulars of registration referred to in paragraphs (1) to (4) and (9) to (13) of section 2.

Registry to be
prima facie
evidence.

4. The Minister of the Interior shall appoint a Chief Registration Officer and registration officers for the keeping of the Registry in accordance with the provisions of this Law.

Registration
officers.

CHAPTER TWO : NOTIFICATION

5. Every resident shall notify a registration officer, within thirty days from the day on which he first entered Israel or, if he became a resident after entering Israel, from the day on which he became a resident, of his particulars of registration, within the meaning of section 2; and if at the time of entering or becoming a resident he had charge of a minor or of a person of full age incapable of fulfilling his duty under this section, he shall notify also the particulars of registration of such minor or person of full age.

Duty to notify
particulars of
registration.

6. Notification of a birth which occurred in Israel shall be made to a registration officer within ten days. It shall be made by the person in charge of the institution at which the birth occurred or, if the birth did not occur in an institution, by the parents of the child and by the physician and midwife who attended to the birth. The notification shall contain the particulars of registration of the child and such other particulars as shall be prescribed by regulations with the approval of the Home Affairs Committee of the Knesset.

Notification of
birth in Israel.

7. Notification of a death which occurred in Israel shall be made within 48 hours to a registration officer or to the person empowered to

Notification of
death in Israel.

issue the burial permit under the Public Health Ordinance, 1940¹⁾. It shall be made by the person in charge of the institution in which the death occurred or by the physician who ascertained the death or, in the absence of a physician, by a person who was present at the time of death. The notification shall contain the particulars of registration of the deceased and such other particulars as shall be prescribed by regulations with the approval of the Home Affairs Committee of the Knesset.

Definition of
"institution".

8. For the purposes of sections 6 and 7, "institution" includes a hospital, a prison, a public or religious institution, a charitable institution, a home, within the meaning of the Homes (Supervision) Law, 5725-1965²⁾, and a hotel; and a public vehicle, vessel or aircraft shall be deemed to be an institution.

Foundling.

9. Where an infant is found abandoned, any person first obtaining possession of the infant shall within ten days make notification to a registration officer of such particulars of registration of the infant as are known to him and transmit to him any such other information as he may have concerning the birth of the infant.

Discovery of
dead body.

10. Where the police have been notified of the discovery of a dead body, under section 21 of the Criminal Procedure Amendment (Investigation of Felonies and Causes of Death) Law, 5718-1958³⁾, they shall transmit to a registration officer any information they may possess concerning the particulars of registration of the deceased.

Birth abroad.

11. A resident to whom a child is born abroad shall within thirty days make notification to the registration officer of the particulars of registration of the child.

Death abroad.

12. Where a resident dies abroad, his spouse, or a child or parent of his, being a resident, shall make notification of the fact to a registration officer within thirty days from the day on which the death comes to his knowledge.

Adoption
abroad.

13. A resident who adopts a child abroad shall within thirty days make notification to a registration officer of the particulars of registration of the child and transmit to the registration officer the document of adoption; the same applies, *mutatis mutandis*, where the adoption of a child is rescinded abroad.

Leaving Israel.

14. A resident of full age who leaves Israel with a view to settling abroad shall notify the registration officer of the fact. The notification shall include also his minor children who leave with him.

¹⁾ P.G. of 1940, Suppl. I, No. 1065, p. 239 (English Edition); *Sefer Ha-Chukkim* of 5722, p. 12 — *LSI* vol. XVI, p. 10.

²⁾ *Sefer Ha-Chukkim* of 5725, p. 48; *supra*, p. 44.

³⁾ *Sefer Ha-Chukkim* of 5718, p. 54; *LSI* vol. XII, p. 66.

15. In the event of any of the following acts, the authority concerned shall deliver to a registration officer, within fourteen days from the date of the act, a copy of the document attesting it, accompanied by such particulars specified in regulations as are necessary for the identification of the person concerned :

Delivery of documents of official acts.

- (1) Change of name, choice of name or fixing of name under the Names Law, 5716-1956¹⁾;
- (2) a marriage registered under the Marriage and Divorce (Registration) Ordinance²⁾;
- (3) a change of religion registered under the Religious Community (Change) Ordinance³⁾;
- (4) naturalisation or renunciation of nationality under the Nationality Law, 5712-1952⁴⁾;
- (5) a notification of death under section 7 to the person empowered to issue the burial permit.

16. Where a civil or religious court has given a decision declaring a change in the particulars of registration of any person or a decision involving a change as aforesaid, it shall deliver a copy of such decision to the Chief Registration Officer. The same shall be done in respect of a copy of an adoption order, divorce certificate or declaration of death.

Delivery of copies of judgments and declarations.

17. Where a change other than as referred to in section 15 or 16 occurs in the particulars of registration of any resident, such resident shall within thirty days make notification of the change to the registration officer; and where a resident has charge of a minor or a person of full age incapable of fulfilling his duty under this section, such resident shall within thirty days make notification of any change as aforesaid in the particulars of registration of such minor or person of full age.

Duty to notify changes.

18. (a) Notification under any of the sections of this chapter by one of those required to make it shall release the others from the duty of notification.

Release from duty of notification.

(b) A notification under section 7 containing particulars of the spouse of a deceased person shall release such spouse from the duty of notifying her or his widowed state.

CHAPTER THREE: POWERS OF REGISTRATION OFFICER

19. A registration officer may demand from a person making notification under Chapter Two or from any other person required to make that notification — even if he has become released by virtue of section 18 or the period prescribed for making the notification has passed —

Demand for information and declarations.

¹⁾ *Sefer Ha-Chukkim* of 5716, p. 94; *LSI* vol. X, p. 95.

²⁾ *Laws of Palestine* vol. II, cap. 88, p. 903 (English Edition).

³⁾ *Laws of Palestine* vol. II, cap. 127, p. 1294 (English Edition).

⁴⁾ *Sefer Ha-Chukkim* of 5712, p. 146; *LSI* vol. VI, p. 50.

- (1) to furnish him with any information or document in his possession concerning the particulars of the registration to which the notification relates, unless the information or document is calculated to incriminate him;
- (2) to make a written or oral declaration of the correctness of any document or information furnished by him.

Registration of adoption.	20. Where a child has been adopted, then, in the Registry and in any document under this Law, the adopters shall be registered as his parents and the adoptee as their child, under the name fixed for him in the adoption order.
Name of father where woman unmarried.	21. The name of the father of the child of an unmarried mother shall be registered on the basis of a joint notification by the father and the mother or on the basis of a judgment of a competent civil or religious court.
Name of father where mother married.	22. Save under a judgment of a competent civil or religious court, a man shall not be registered as the father of the child of a woman who had been married to another man within 300 days prior to the date of the birth of the child.
Correction of clerical errors.	23. The Chief Registration Officer may direct the correction of a clerical error or omission which occurred in the Registry or in any document issued under this Law.

CHAPTER FOUR : IDENTITY CERTIFICATE

Right to receive identity certificate.	24. A resident who is in Israel and who has completed his sixteenth year may receive an identity certificate. A resident who is in Israel and who has not completed his sixteenth year may receive an identity certificate with the consent of his representative, within the meaning of section 80 of the Capacity and Guardianship Law, 5722-1962 ¹⁾ , or with the approval of the Chief Registration Officer.
Contents of identity certificate.	25. An identity certificate shall contain the particulars of registration prescribed by the Minister of the Interior with the approval of the Constitution, Legislation and Juridical Committee of the Knesset. The names of the children shall be entered both in the identity certificate of their father and in the identity certificate of their mother. A photograph of the holder shall be attached to every certificate, except the certificate of a woman who declares that she refuses to be photographed for religious reasons. An identity certificate shall bear the signature or fingerprint of the holder.
Period of validity of identity certificate.	26. The period of validity of an identity certificate shall be seven years from the date of issue.

¹⁾ *Sefer Ha-Chukkim* of 5722, p. 120; *LSI* vol. XVI, p. 106.

27. Nothing shall be entered in an identity certificate otherwise than in accordance with a provision of a Law or of regulations made by the Minister of the Interior.

Prohibition of entry in identity certificate.

28. (a) A registration officer may require the holder of a certificate to submit it for the purpose of entering a change in a particular of registration or if the certificate is worn out or has expired or if the photograph no longer correctly represents the holder.

Power to call in identity certificate.

(b) Where in dealing with an identity certificate it appears to a registration officer that any change, correction, addition or deletion has been made therein unlawfully, he may retain such identity certificate until the matter has been fully examined.

CHAPTER FIVE : RECEIPT OF INFORMATION

29. (a) Any person may receive information concerning, or a copy of or extract from, the entry in the Registry relating to him.

Information.

(b) Any person may receive information concerning the name and address of any other person registered in the Registry.

(c) A person who is *prima facie* interested may receive information as to the date of birth, and other particulars of registration determined by regulations, of a person registered in the Registry.

30. (a) A person born in Israel who is registered in the Registry may receive a birth certificate.

Birth and death certificates.

(b) A person who is *prima facie* interested may receive a birth certificate or death certificate of another person registered in the register if the birth or death took place in Israel.

31. The Registry and the documents therein shall not be open for inspection except to the following for the purpose of the discharge of their duties:

Inspection of Registry.

(1) The Minister of the Interior or a person empowered by him in that behalf;

(2) the Minister of Defence or a person empowered by him in that behalf;

(3) the Attorney General or his representative;

(4) the Inspector-General of Police or a person empowered by him in that behalf;

(5) a person empowered in that behalf by a civil or religious court for the purposes of a specific matter pending before it;

(6) a marriage registrar or a person empowered in that behalf by a marriage registrar.

32. Sections 29 to 31 shall not derogate from the provisions of section 27 of the Adoption of Children Law, 5720-1960¹⁾, and particulars

Information as to adoption.

¹⁾ *Sefer Ha-Chukkim* of 5720, p. 96; *LSI* vol. XIV, p. 93.

likely to lead to the identification of an adopter or an adoptee or his parents or other relatives shall not be disclosed except to the persons specified in that section. The Minister of the Interior shall issue directions aimed at enabling a marriage registrar, or a particular person who requires such information for the discharge of his duties in the registration of marriages, to ascertain whether a particular candidate for marriage is an adoptee.

CHAPTER SIX : OFFENCES

Criminal use
of identity
certificate.

33. Any person who —

- (1) delivers his identity certificate or part thereof to another person for an illegal purpose; or
- (2) unlawfully alters, corrects, adds or deletes any entry in an identity certificate; or
- (3) wilfully destroys an identity certificate or part thereof;

shall be liable to imprisonment for a term of one year.

Possession
of identity
certificate in
which alteration
has been made.

34. A person who kept possession of his identity certificate after any unlawful alteration, correction, addition or deletion had been made therein, and who does not prove that he did so in good faith, shall be liable to imprisonment for a term of six months.

Various
offences.

35. (a) A person who discloses the contents of the directions of the Minister of the Interior referred to in section 32 to a person other than a marriage registrar or a person requiring the knowledge of those directions for the discharge of his functions in the registration of marriages shall, if he is a public servant, be liable to imprisonment for a term of three years or, if he is not a public servant, be liable to imprisonment for a term of three months.

(b) Any person who —

- (1) for his identification produces the identity certificate of another person as if it were his own identity certificate; or
- (2) for the purposes of this Law delivers any information, document or notification knowing it to be incorrect; or
- (3) unlawfully refuses a demand of a registration officer under section 19; or
- (4) having been required by a registration officer to submit his identity certificate in accordance with section 28 (a), does not do so within the time prescribed in the requisition

shall be liable to imprisonment for a term of three months.

(c) A person who does not within the time prescribed deliver any notification which he is bound to deliver under sections 5-7, 9, 11-13 and 17 shall be liable to imprisonment for a term of two weeks or to a fine of 100 pounds.

36. In section 2 of the Penal Law Amendment (Offences Committed Abroad) Law, 5716-1955¹⁾, the following paragraph shall be inserted after paragraph (8):

"(9) an offence under the Population Registry Law, 5725-1965."

Amendment of
Penal Law
Amendment
(Offences Com-
mitted Abroad)
Law.

CHAPTER SEVEN: MISCELLANEOUS

37. The Minister of the Interior may make regulations as to the renewal of such entries in the Registry, a register of births or a register of deaths as have been lost or destroyed. For the purposes of renewal as aforesaid, every person concerned shall, as far as possible, be given an opportunity to be heard.

Renewal of
lost entries.

38. The Minister of the Interior may, by order, empower a local authority to carry out any function under this Law.

Assignment of
functions to
local authority.

39. (a) The Minister of the Interior may, with the consent of the Minister of Health, make regulations as to anything relating to the registration of births and deaths, including regulations concerning —

Regulations
concerning the
registration
of births and
deaths.

- (1) the forms for the notification of births and deaths;
- (2) the form of registers of births and deaths;
- (3) the form of certificates of births and deaths;
- (4) the late registration of births and deaths, including the birth of residents born in Cyprus or Mauritius who immigrated into Israel on or before the 29th Elul, 5709 (23rd September, 1949).

(b) Regulations under subsection (a) concerning births and deaths which occur in vessels or aircraft registered in Israel shall be made with the consent also of the Minister of Transport. Regulations concerning the registration of the death of soldiers shall be made with the consent also of the Minister of Defence.

40. Registration under this Law shall not affect the laws regarding prohibition and permission in matters of marriage and divorce.

Saving of laws.

41. The Minister of the Interior may exempt classes of persons from compliance with all or part of the provisions of this Law in so far as it seems necessary to him to do so for the purpose of the implementation of an international convention to which Israel is a party.

Exemption.

42. In the Public Health Ordinance, 1940 —

(1) section 4 to 6 shall be replaced by the following sections:

Amendment of
Public Health
Ordinance, 1940.

"Notification of birth of dead infant. 4. (1) Where an infant issues from his mother dead after the expiration of the twenty-eighth week of pregnancy (such an infant hereinafter referred to as a "dead

¹⁾ *Sefer Ha-Chukkim* of 5716, p. 7; *LSI* vol. X, p. 7.

infant”), the father or mother or, if they fail to fulfil this duty, the midwife or other person who attended the mother at or within six hours after the birth shall notify the birth of the dead infant. Notification shall be made within fifteen days from the date of the birth to the District Health Office or, if there is no District Health Office in the locality concerned, to a physician empowered in that behalf by the Director.

(2) A physician as referred to in subsection (1) shall keep a record of all the births of dead infants which occur in his area of jurisdiction and which are notified in accordance with subsection (1) or of which he is otherwise notified, and after recording the notifications he shall transmit them, or a copy of them, as shall be prescribed, to the nearest District Health Office.

(3) Where the birth of a dead infant is not notified through the fault of the parents or of another person obligated to notify it, a Government physician or an inspector may, at any time after the expiration of fifteen days from the date of the birth, require any person obligated to make notification under this section to give information, to the best of his knowledge and belief, of the particulars which he is obligated to notify as aforesaid, and such person shall comply with the requisition.”;

(2) paragraph (d) of section 8(1) shall be replaced by the following paragraph :

“(d) A burial permit shall not be issued unless notification of the death has been made, in accordance with the Population Registry Law, 5725-1965, to the District Health Office or to a physician empowered under paragraph (b) (2), as the case may be, or to a registration officer within the meaning of the said Law, indicating, among the other particulars, the cause of death as determined by a physician and certified by his signature. Where the cause of death has not been determined by a physician, it may be determined by a physician of the District Health Office or a physician empowered under paragraph (b) (2), as the case may be, to the best of his knowledge and belief, and certified by his signature.”.

Repeal.

43. The Registration of Inhabitants Ordinance, 5709-1949¹⁾, is hereby repealed.

Transitional provisions.

44. (a) The Register of Inhabitants kept under the Registration of Inhabitants Ordinance, 5709-1949, shall, from the coming into force of this Ordinance, be part of the Registry under this Law.

¹⁾ *I. R.* of 5709, Suppl. I, No. 48, p. 164; *LSI* vol. II, p. 103.

(b) Wherever in any provision of law reference is made to registration under the Registration of Inhabitants Ordinance, 5709-1949, such reference shall, unless the context otherwise requires, be deemed to be a reference to registration under this Law.

(c) An identification booklet issued under the Emergency Regulations (Registration of Inhabitants), 5708-1948¹⁾, and an identity certificate, or any other certificate, issued under the Registration of Inhabitants Ordinance, 5709-1949, or the Public Health Ordinance, 1940, shall be deemed to be certificates under this Law.

(d) Notwithstanding anything provided in section 26, an identification booklet or identity certificate, as referred to in subsection (c), shall not expire before the expiration of three years from the date of the coming into force of this Law or before the elections to the Seventh Knesset, whichever is the later date.

45. The particulars entered in identity certificates immediately before the coming into force of this Law shall be entered in identity certificates issued during the six months immediately following the date of the coming into force of this Law, but not later than the date of the coming into force of regulations under section 25.

Temporary provision.

46. The Minister of the Interior shall prescribe by regulations the procedure for the registration of Israel nationals who on the date of the coming into force of this Law had not been registered under the Registration of Inhabitants Ordinance, 5709-1949.

Registration of Israel nationals abroad.

47. The Minister of the Interior is charged with the implementation of this Law and may, with the approval of the Constitution, Legislation and Juridical Committee of the Knesset, make regulations as to any matter relating to such implementation, including regulations as to —

Implementation and regulations.

- (1) the procedure for notifying particulars of registration and any changes therein to the Registry Offices or to Israeli Representations abroad;
- (2) the places for the delivery of notifications under this Law;
- (3) rules for the issue of certificates, extracts, copies and information;
- (4) fees for services and certificates under this Law;
- (5) the registration of the death of a person who died abroad, whose death has not been registered and who was buried in Israel;
- (6) the correction of clerical errors and omissions under section 23.

48. This Law shall come into force at the expiration of one year from the date of its publication in *Reshumot*.

Commencement.

LEVI ESHKOL
Prime Minister

HAIM MOSHE SHAPIRA
Minister of the Interior

SHNEUR ZALMAN SHAZAR
President of the State

¹⁾ I. R. of 5708, Suppl. II, No. 16, p. 77.